

shall file and serve their responsive pleading within 10 days' from the date of this hearing. Counsel for the Cross-Defendants shall prepare and submit a form of order consistent with this ruling within two weeks.

12. 25CV04143 ROBINSON, JOSEPH V. SELLAND, DAMON

EVENT: Defendant City of Chico Code Enforcement Officer Selland's Demurrer to Second Amended Complaint

Defendant City of Chico Code Enforcement Officer Damon Selland's ("Defendant" herein) Request for Judicial Notice is granted pursuant to *Evidence Code* §452(d) [Court Records]. The language in the Second Amended Complaint that Defendant argues is beyond the scope of the Court's prior Ruling on the Demurrer is found at Page 4, Paragraph 5, and states "5. Defendant knowingly, intentionally, willfully and maliciously abused the power of his office to inflict emotional distress upon Plaintiff under color of law." The Court agrees that this additional theory of liability is beyond the scope of the Court's Ruling on the prior Demurrers and does not directly address the Court's reason for sustaining the Demurrer. See, *Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."]; See also, *Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995. As such, the Court previously ruled that should the Complaint be amended further following the Court's ruling on the prior Demurrer, no such allegation shall be included. Plaintiff however again included such language, which remains improper.

The Demurrer to the entire Second Amended Complaint is granted on the grounds that (1) Plaintiff has again failed to allege he exhausted administrative remedies subject to the claim presentation requirements set forth in the *Government Code* §810 et seq.; and (2) Plaintiff has again failed to allege facts sufficient to show an exception to the discretionary immunity in *Government Code* §820.2, and statutory immunity in *Government Code* §§820.4 and 821.6, thus the Second Amended Complaint again fails to state facts to support any cause of action pursuant to *Code of Civil Procedure* §430.10(e). The Court further finds that that the Second Amended Complaint remains uncertain, ambiguous, and unintelligible, and therefore fails to state facts sufficient to constitute a cause of action pursuant to *Code of Civil Procedure* §430.10(f) and (e).

The Demurrer is sustained in its entirety without leave to amend. The Court will utilize the form of order submitted by the Defendant and this matter shall remain on calendar on August 26, 2026 at 10:30 a.m. for status of dismissal.

13. 25CV05089 SANDERS, PHILLIP V. SANDERS, MARLENE ET AL

EVENT: Demurrer of Defendant, Marlene Sanders to Plaintiff's Complaint

Defendant Marlene Sanders' ("Defendant" herein) Request for Judicial Notice is granted. The Court agrees with the Plaintiff that "legal capacity" is not the same thing as whether Plaintiff can ultimately prove his claimed right to the disputed funds, which is what Defendant is arguing by way of her Demurrer. See e.g., *Washington Mutual Bank v. Blechman* (2007) 157 Cal.App.4th 662, 669-670 ["There is a difference between the *capacity* to sue, which is the right to come into court, and the *standing* to sue, which is the right to relief in court (citations omitted)."] Here, the Court finds that Plaintiff has sufficiently stated causes of action for Fraud (Intentional Misrepresentation), Negligent Misrepresentation, Conversion, Negligence, Breach of Implied Covenant of Good Faith and Fair Dealing, and Declaratory Relief and the Demurrer is overruled in its entirety. Defendant is ordered to file and serve her Answer to the Complaint within 20 days of this hearing. The Court will sign the form of order submitted by the Plaintiff.

The Case Management Conference on June 24, 2026 is continued to September 16, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

14-15. 25CV05132 KATHLEEN FRANCES O'LEARY, BY AND THROUGH HER SUCCESSOR-IN-INTEREST, REBEKAH EASTER ET AL V. MURRAY, JASON ET AL

EVENTS: (1) Plaintiffs' Motion to Compel the Deposition of Michael Lunsford Regarding the Arbitration Agreement

(2) Plaintiffs' Motion to Compel Defendant Providence Administrative Consulting Services, Inc.'s Inspection of Electronically Stored Information Regarding the Arbitration Agreement

Plaintiffs' Motion to Compel the Deposition of
Michael Lunsford Regarding the Arbitration Agreement

The Motion is GRANTED. The Court finds that the requested deposition of Michael Lunsford is narrow, targeted, and necessary to allow Plaintiffs to prepare their opposition to Defendants' Motion to Compel Arbitration and concludes that Plaintiffs have shown good cause to compel the deposition of Michael Lunsford limited in scope to the circumstances surrounding the arbitration agreement. The Court orders Defendants to produce Michael Lunsford for deposition, limited to issues concerning the alleged arbitration agreement and Defendants' Motion to Compel Arbitration within 10 Court days of the date of hearing. Counsel for the Plaintiffs shall prepare and submit a form of order within two weeks.

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